



File No.: EXP202307391

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On May 16, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data.

The complaint is directed against the COMMUNITY OF OWNERS ***COMMUNITY.1 with NIF ***NIF.1 (hereinafter, the respondent).

The grounds for the complaint are that a video surveillance system is installed in the common areas of the building located at ***ADDRESS.1 without prior agreement from the Owners' Meeting, having a sign indicating that the responsible party for the processing would be the Community, although it indicates that the Community Administrator denies this point and states that the Community of Owners did not agree to such installation, but rather a property owner of several rental apartments located in the Community.

A copy of an email sent to the property Administrator is provided, without having received a response, as well as recordings and images of the location of the cameras at the entrance of the property. In these recordings, an informative sign can be seen next to one of the cameras, located in the entrance hall of the property in a visible place, indicating the Community of Owners as responsible and the address “***ADDRESS.1”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 1, 2023, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations, but no response has been received, despite reiterating this request in July and August 2023.

THIRD: On August 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 19, 2024, the Director of the Spanish Agency for the Protection of Data agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party; it was reiterated on 21/06/2024 by certified postal mail, and was again returned as “absent.” The publication in the Official State Gazette (BOE) of the initiation agreement of this procedure took place on 06/08/2024.

SIXTH: Once the deadline for submitting allegations has passed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for the Protection of Data considers the following facts to be proven in this proceeding,

PROVEN FACTS

FIRST: A video surveillance system is installed in the common areas of the building located at

***ADDRESS.1 without prior agreement from the Owners' Meeting.

A copy of an email sent to the property Administrator is provided, without having received a response, as well as recordings and images of the location of the cameras at the entrance of the property, with the recordings and images provided being the evidence that supports this.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states that: "The proceedings processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Image is a personal data

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/10

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the security of persons and property, as well as their facilities.

For the processing of personal data to be lawful, it must fall under one of the cases outlined in Article 6.1 of the GDPR, which states the following:

1. The processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or

fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/10

The provisions of paragraph f) of the first section shall not apply to processing carried out by public authorities in the exercise of their functions.

The use of video surveillance systems in the common areas of a community of property owners must respect various aspects for such a recording system to comply with current data protection regulations. Firstly, it must have the appropriate legitimacy, so that the installation of cameras in common areas complies with data protection regulations, it will be necessary for such installation to have been approved by an agreement of the Board of Owners, and this agreement must be reflected in the minutes of said Board.

It is recommended that the agreement reflects some of the characteristics of the video surveillance system, such as the number of cameras or the area covered by them.

Secondly, prior to its operation, the registration of activities related to this processing must be carried out. This is an internal document. The FACILITA_RGPD tool available on the AEPD website can be used when it does not involve large infrastructures (train stations, shopping centers). The Guide on the use of video cameras for security and other purposes provides a model for the registration of activities. Thirdly, one or more signs must be installed at the various access points to the monitored area, in a visible location, informing that access is to a video-monitored area.

The sign will clearly indicate the identity of the person responsible for the installation, to whom and where to address to exercise the rights provided by data protection regulations, and where to obtain more information about the processing of personal data. The AEPD provides a model sign in the Guide on the use of video cameras. Likewise, the remaining information required by data protection legislation must be made available to those affected.

This information may be available at the concierge, reception, offices, bulletin boards, or accessible via the Internet.

Regarding the installation of the video surveillance system, the cameras may only capture images of the common areas of the community. Images of the public road may not be captured unless it is essential for the intended purpose, except for a minimal strip of the accesses to the property, nor images of adjacent land and homes or any other external space.

If orientable and/or zoom cameras are used, the installation of privacy masks will be necessary to prevent capturing images of the public road, land, and homes of third parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/10

The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the community of property owners from compliance with regulations regarding the protection of personal data.

Regarding the monitors and viewing of images, it should be noted that access to the images will be restricted to individuals designated by the community. Under no circumstances will they be accessible to the neighbors via the community television channel.

If access is made through an Internet connection, it will be restricted with a username and password (or any other means that guarantees unique identification and authentication), which will only be known by the individuals authorized to access such images.

Once the system is installed, it is recommended to change the password, avoiding easily deducible ones.

In the event that the camera system includes a recording system, it will be located in a monitored or restricted access area. Only authorized personnel will have access to the recorded images, and they must enter a username and password.

The images will be retained for a maximum period of one month from their capture, after which they will be deleted.

Images used to report crimes or infractions will be attached to the report and will be retained for possible delivery to the Security Forces or to the Courts and Tribunals that require them. They may not be used for any other purpose.

Requests for images by the Security Forces will be made within the framework of judicial or police actions. The request to the data controller will be the document that protects them in order to provide data to the Security Forces or to the Courts and Tribunals that require it.

III

Violation of Article 6 of the GDPR

In this case, from the documentation in the file provided by the complaining party, it is evident that a video surveillance system is installed in the common areas of the building located at ***ADDRESS.1 without prior agreement from the Board of Owners, having a sign indicating that the responsible party for the processing would be the Community.

The complaining party in their complaint states that they have asked the property administrator of the community of owners whether the Board of Owners has authorization for the installation of cameras in the common areas, to which the administrator has responded that the Board of Owners does not have any authorization allowing the placement of the video surveillance system located in the common areas, but that its placement has been at the request of an owner of multiple rental apartments located in the Community.

However, in the recordings provided by the complaining party, a sign can be seen next to one of the cameras informing about the existence of the video surveillance system, located in a visible place at the entrance of the building. This sign lists the Community of Owners as responsible and the address “***ADDRESS.1”.

The AEPD has requested the Community of Owners to prove that the processing of images of individuals within the field of vision of the cameras complies with data protection regulations, but no response has been received.

It is considered that the facts presented violate what is established in Article 6 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following: “Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679. (...).”

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

C/ Jorge Juan, 6

www.aepd.es

1.- Natural or legal persons, whether public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Proposal for a warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

Likewise, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," provides in its third section that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/10

The procedure shall have a maximum duration of six months from the date of the initiation agreement. Once this period has elapsed, it shall expire, and consequently, the proceedings shall be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case. In accordance with the evidence available in this procedure, considering the nature of the facts and the balance of the circumstances contemplated in Article 83.2 of the GDPR, due to the infringement committed by violating the provisions of Article 6.1 of the GDPR, it is appropriate to issue a warning to the respondent party.

VI

Adoption of Measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

The controller is required to notify this Agency of the adoption of the following measures within two months from the notification of the resolution of this warning procedure:

In this case, it is required that within two months the system be regularized with the appropriate agreement of the Board, and if not obtained, that the cameras in the common areas be removed until the COMMUNITY OF OWNERS ***COMMUNITY.1, with NIF ***NIF.1, has agreed in a meeting of the Community of Owners to install a surveillance camera system in the common areas. Until the corresponding meeting of the Owners is held, the surveillance cameras must remain non-operational. It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative warning proceedings.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to the COMMUNITY OF OWNERS ***COMMUNITY.1, with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO ORDER the COMMUNITY OF OWNERS ***COMMUNITY.1, with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within two months from the date this resolution becomes final and enforceable, to demonstrate that it has adopted the necessary measures to align its actions with the personal data protection regulations, to the extent expressed in the Legal Basis VI.

THIRD: TO NOTIFY this resolution to the COMMUNITY OF OWNERS ***COMMUNITY.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

1403-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es